GAURI AMIT GAEKWAD
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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
TESTAMENTARY AND INTESTATE JURISDICTION

MISCELLANEOUS PETITION NO.1177 OF 2026

Shruti Jigar Shah Nee. Shruti Nemchand Chheda ....Deceased

1. Jigar Manish Shah

2. Humisha Jigar Shah ….Petitioners

Mr. Suraj S. Ghogare for the Petitioners.

CORAM : GAUTAM A. ANKHAD, J.

DATE : 22nd OCTOBER, 2026.

P.C. :

1. This Petition is filed seeking Legal Heirship Certificate under Section 2 of Bombay Regulation (VIII) of 1827 in respect of the Deceased – Shruti Jigar Shah Nee. Shruti Nemchand Chheda who at the time of her death was residing at Flat No.801, 8th Floor, 71 Raintree Building, 71 Raintree Co-operative Housing Society Limited, Plot No.71, Hindu Colony Lane No.2, Dadar (East), Mumbai – 400 014. The Deceased died intestate on 30th June, 2026 and a copy of the death certificate is annexed at Exhibit ‘A’ to the Petition.

2. Petitioner No.1 is the husband of the Deceased and Petitioner No.2 is the minor daughter of the Deceased. At paragraph no.4, the Petitioners have furnished details of the only surviving legal heirs and next-of-kin of the Deceased as follows :

Sr. No.	*Name and address of the legal heirs of the deceased*	*Relationship with the deceased*	*Address*	*Age*
1.	Jigar Manish Shah (Petitioner No.1 herein)	Widower	Flat No.1003, 10th Floor, Aden Court, Hormasu Adenwala Road, King Circle, Matunga, Mumbai – 400 019	36
2.	Humisha Jigar Shah, minor through her father, next friend and natural legal guardian (Petitioner No.2 herein)	Daughter	Flat No.1003, 10th Floor, Aden Court, Hormasu Adenwala Road, King Circle, Matunga, Mumbai – 400 019	10

3. It is further stated that there are no other heirs and next-of-kin of the Deceased. It is in this background that the Petitioners seek the Heirship Certificate.

4. The reasons for filing this Petition are stated at paragraph nos.6 to 10 of the Petition. It is also stated that the Petitioners or the legal heirs

have not filed any other Petition for Heirship Certificate, Succession Certificate, Probate or Letters of Administration and there is no impediment to the grant of the reliefs in this Petition.

5. In view of the statements/undertakings contained in the Petition, which are accepted, **Miscellaneous Petition No.1177 of 2026 is allowed** in terms of prayer clause (a), which reads as under :

> *(a) This Hon'ble Court may be pleased to issue a Legal Heirship Certificate to the Petitioners under the provisions of Bombay Regulation VIII of 18274 certifying that the Petitioners i.e. Mr. Jigar Manish Shah and Ms. Humisha Jigar Shah are the only legal heirs and representatives of the deceased Late Shruti Jigar Shah Nee. Shruti Nemchand Chheda.*

6. Issue of Proclamation is dispensed with.

7. The Department is directed to issue the Legal Heirship Certificate within a period of six weeks from today.

[GAUTAM A. ANKHAD, J.]